

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

2. CONTRACT NUMBER	3. SOLICITATION NUMBER	4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☐ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
7. ISSUED BY	CODE	8. ADDRESS OFFER TO (If other than item 7)		

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until _____ local time _____ (Hour) _____ (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL: 	A. NAME	B. TELEPHONE (NO COLLECT CALLS)		C. EMAIL ADDRESS
		AREA CODE	NUMBER	EXTENSION

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OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8) 	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER	☐ 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER	EXTENSION		

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified) 	ITEM
24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY	CODE
26. NAME OF CONTRACTING OFFICER (Type or print)	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable

STANDARD FORM 33 (REV. 12/2022)
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

Receipt Inspectors

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Receipt Inspectors to support the Receipt Inspection Services within the Quality Assurance (QA) Department in accordance with the Statement of Work Pricing Arrangement: Cost Plus Fixed Fee	12	Months		
0002	All allotted travel expenses in accordance with the Statement of Work Pricing Arrangement: Cost No Fee	12	Months		
0003	DATA REQUIREMENTS - CONTRACT DATA REQUIREMENTS LIST (CDRL) IN ACCORDANCE WITH EXHIBIT A 001 Accident Incident Report				
0004	DATA REQUIREMENTS - CONTRACT DATA REQUIREMENTS LIST (CDRL) IN ACCORDANCE WITH EXHIBIT A 002 Performance and Cost Report				
0005	DATA REQUIREMENTS - CONTRACT DATA REQUIREMENTS LIST (CDRL) IN ACCORDANCE WITH EXHIBIT A 003 Meeting Minutes				
Option Line Item 1001	Option to Extend Receipt Inspectors to support the Receipt Inspection Services within the Quality Assurance (QA) Department in accordance with the Statement of Work. Pricing Arrangement: Cost Plus Fixed Fee	12	Months		
Option Line Item 1002	All allotted travel expenses in accordance with the Statement of Work Pricing Arrangement: Cost No Fee	12	Months		
Option Line Item 1003	DATA REQUIREMENTS - CONTRACT DATA REQUIREMENTS LIST (CDRL) IN ACCORDANCE WITH EXHIBIT A 001 Accident Incident Report				
Option Line Item 1004	DATA REQUIREMENTS - CONTRACT DATA REQUIREMENTS LIST (CDRL) IN ACCORDANCE WITH EXHIBIT A				

	002 Performance and Cost Report				
Option Line Item 1005	DATA REQUIREMENTS - CONTRACT DATA REQUIREMENTS LIST (CDRL) IN ACCORDANCE WITH EXHIBIT A 003 Meeting Minutes				
Option Line Item 2001	Option to Extend Receipt Inspectors to support the Receipt Inspection Services within the Quality Assurance (QA) Department in accordance with the Statement of Work. Pricing Arrangement: Cost Plus Fixed Fee	12	Months		
Option Line Item 2002	All allotted travel expenses in accordance with the Statement of Work Pricing Arrangement: Cost No Fee	12	Months		
Option Line Item 2003	DATA REQUIREMENTS - CONTRACT DATA REQUIREMENTS LIST (CDRL) IN ACCORDANCE WITH EXHIBIT A 001 Accident Incident Report				
Option Line Item 2004	DATA REQUIREMENTS - CONTRACT DATA REQUIREMENTS LIST (CDRL) IN ACCORDANCE WITH EXHIBIT A 002 Performance and Cost Report				
Option Line Item 2005	DATA REQUIREMENTS - CONTRACT DATA REQUIREMENTS LIST (CDRL) IN ACCORDANCE WITH EXHIBIT A 003 Meeting Minutes				

Additional Regulation or Supplemental Clauses Incorporated by Full Text**B-215-H001 MAXIMUM RATES****(Oct 2018)**

(a) Maximum Pass Through Rates - Applicable to all Task Orders Types. The pass through rate is defined as the cumulative amount of the two elements listed below divided by the price paid to the subcontractor or the vendor:

- (1) any and all prime contractor indirect costs including, but not limited to: overhead, material handling charges, G&A, burdens and mark-ups; and
- (2) any and all prime contractor profit or fee*

*For purposes of this contract, "fee" means "target fee" in cost-plus-incentive-fee type contracts, "base fee" in cost-plus-award-fee type contracts, or "fixed fee" in cost-plus-fixed-fee type contracts.

(b) The Contractor agrees that the maximum pass-through rate that shall be charged against any non-ODC CLIN where labor is proposed under this contract shall not exceed **8%**. For purposes of the maximum pass-through, any effort provided by a division, subsidiary or any other entity of the prime contractor shall not be considered subcontracted effort and all fee/profit must be provided at the prime level subject to the limitations specified in this contract.

(c) Maximum Profit/Fee Rate - Applicable to Cost Plus Fixed Fee CLINs Only. Contractor compliance with the maximum fee rate on CPFF CLINs is applicable at the time of task order award and is based on the ratio of fixed fee to the estimated cost. A proposed fee at the task order level that is higher than the maximum fee rate stated in the offeror's base contract shall render the contractor's proposal unacceptable. The Contractor agrees that the maximum fixed fee rate shall not exceed **8%**. Fee becomes a fixed dollar amount at the time of task order award and is subject to the provisions of the Level of Effort clause of the task order. The maximum fee rate being proposed at the task order level by the prime contractor shall flow down to all subcontractors/consultants included as part of your (the Prime) proposal.

(d) Other Direct Costs and Travel. No fee is allowed on Other Direct Costs or Travel. Indirect cost elements such as G&A and material handling may be applied to ODCs but may not include fee.

(End of text)

B-231-H002 WORKSITE TRAVEL COSTS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) The contractor shall not charge, and the Government shall not pay, as an allowable cost under this contract, any manhour costs (whether straight-time or overtime) for contractor personnel or subcontractor personnel traveling to or from worksites, including travel to worksites other than the contractor's facility for performance of contract work.

(b) Workers being paid under this contract, as prime contractor personnel or subcontractor personnel, will complete a full shift at the worksite, and no compensation will be paid for travel time before or after the shift.

(c) This requirement pertains only to payments for travel time before or after these workers' regular shifts (commuting costs), and does not apply to legitimate travel costs incurred during normal working hours, provided that those costs are otherwise reasonable, allocable and allowable and approved in writing by the Government. This requirement does not apply to manufacturer's representatives or Original Equipment Manufacturer (OEM) representatives when specifically required by the Government work specifications.

(d) Additionally, the contractor shall not charge, and the Government shall not pay, any transportation costs under this contract associated with transporting contractor or subcontractor personnel between the contractor's facility (or subcontractor's facility), and any other worksite to perform ship repair, maintenance or modernization. Transportation costs include, but are not limited to, bus fare, car fare, train fare, or boat fare, paid by the workforce, or paid by the contractor on behalf of the work force.

(End of Text)

B-231-H001 TRAVEL COSTS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) Except as otherwise provided herein, the Contractor shall be reimbursed for its actual travel costs in accordance with FAR 31.205-46. The travel costs to be reimbursed shall be those costs for which the Contractor has maintained appropriate documentation and which have been determined to be allowable, allocable, and reasonable by the Procuring Contracting Officer, Administrative Contracting Officer, or their duly authorized representative.

(b) Reimbursable travel costs include only that travel performed from the Contractor's facility to the worksite, in and around the worksite, and from the worksite to the Contractor's facility.

(c) Relocation costs and travel costs incidental to relocation are allowable to the extent provided in FAR 31.205-35; however, Procuring Contracting Officer approval shall be required prior to incurring relocation expenses and travel costs incidental to relocation.

(d) The Contractor shall not be reimbursed for the following daily local travel costs:

- (i) travel at U.S. Military Installations where Government transportation is available,
- (ii) travel performed for personal convenience/errands, including commuting to and from work, and
- (iii) travel costs incurred in the replacement of personnel when such replacement is accomplished for the Contractor's or employee's convenience.

(End of Text)

Section C - Description/Specifications/Statement of Work

STATEMENT OF WORK

1.0 INTRODUCTION

1.1 **Scope** Portsmouth Naval Shipyard (PNS), a field activity of Naval Sea Systems Command (NAVSEA), has a requirement for Receipt Inspectors to support the Receipt Inspection Services within the Quality Assurance (QA) Department. Receipt Inspection provides assurance that the materials procured for use on Naval Nuclear Submarines meet the required and specified requirements before being issued.

1.2 **Period of Performance and Level of Effort** The period of performance is for one year from date of award to include an additional two-year option period. Personnel will work First Shift (0600 - 1430) at PNS, Monday - Friday. The two-year option periods will include the need for Second Shift performance (1400-2230). Additional hours outside the normal shift may be required with advance notice from PNS. The Contractor shall provide an estimated level of effort for a contract manager that would support the management and reporting aspects of this requirement, as annotated in this SOW.

Personnel	Shift	Straight Time Hours	Overtime Hours
Inspector (5)	First Shift	9,960	1,494
Supervisor (1)	First Shift	1,992	149
Contract Manager	N/A	Proposed by Contractor	Proposed by Contractor

Option Years (two twelve-month option periods) - Option years are to increase from only 5 receipt inspectors to 10 (5 for the first shift and 5 for the second shift):

Personnel	Shift	Straight Time Hours	Overtime Hours
Inspector (5)	First Shift	9,960	1,494
Inspector (5)	Second Shift	9,960	1,494
Supervisor (1)	First Shift	1,992	149

Supervisor (1)	Second Shift	1,992	149
Contract Manager	N/A	Proposed by Contractor	Proposed by Contractor

1.3 Place of Performance All work shall be performed on-site at Portsmouth Naval Shipyard, Kittery (Seavey Island), ME

1.4 Non-Personal Service Statement This is a non-personal services contract. Contractor employees will be controlled, directed, and supervised at all times by the Contractor's management. Contractor management must ensure compliance with performance standards outlined herein and will not perform inherently governmental functions per FAR 7.5.

1.4.1 The Contractor shall not perform inherently governmental functions as specified in FAR Subpart 7.5. Inherently governmental functions do not include (i) gathering information for or providing advice, opinions, recommendations, or ideas to Federal Government officials; or (ii) any function that is primarily ministerial and internal in nature.

1.4.2 The Contractor shall supervise and control its employees. The Contractor shall not interpret or perform the contract in a manner that creates a personal services contract as defined within FAR Subpart 37.104, Personal Service Contracts.

2.0 REQUIREMENTS

2.1 Personnel Qualifications Contractor shall provide fully trained, proficient machined parts inspectors that meet or exceed the qualifications and experience identified below.

2.2 Typical Trade Tasks The contractor shall provide qualified Receipt Inspectors capable of performing:

- a. Visual, dimensional, and generic material identification inspections
- b. Setup and inspections on precision surface plates
- c. Setup and inspections on precision surface plates
- d. Functional checks (flexure or spring rate tests)
- e. Generic material verification using acid spot, magnet, or XRF testing
- f. Operation of hardness testers, electronic plating thickness gauges, surface finish analyzers
- g. Data entry into computer programs, such as Product Data Reporting and Evaluation Program (PDREP)

2.3 Qualifications Contractor personnel shall have at least 5 years of experience in:

- a. Precision measuring
 - a. Precision measurement and inspection techniques utilizing precision measurement instruments such as (e.g. profilometers, digital height gages, calipers, screw pitch gages, variable thread pitch gages, optical comparator, hardness tester, precision gage blocks, plug gages, and dial indicators).
- b. Machined parts inspection
- c. Precision testing
- d. Documenting results from inspections and precision testing.
- e. Minimum 2 years of relevant experience.

- a. Inspecting, certification, and control of material to the requirements of NAVSEA Material Control Standard, NAVSEA 0948-LP-045-7010 and System Certification Procedure and Criteria Manual for Deep Submergence Systems, NAVSEA SS800-AG-MAN-010/P-9290, and Requirements Manual for Submarine Fly-By-Wire Ship Control Systems, NAVSEA T9044-AD-MAN-010.
 - b. Inspection and L1 certification of Marrota and Vacco reducing manifolds
 - c. Inspection and L1 certification of fasteners to System 21 and 22 gaging requirements
 - d. Inspection and L1 certification of welding commodities and mill products.
 - e. Application of MIL-STD-792 marking methods
 - f. Material identification using acid spot testing, XRF, or LIBBS
- f. Trained and certified in OSHA safety regulations.

2.4 Supervision

2.4.1 The contractor shall provide adequate supervision to oversee the assigned personnel and ensure the proper execution of the assigned tasks. The contractor shall manage and direct its own employees. The Contractor's Supervisor(s) must be readily available to the workforce during work hours of the shift that the employees are assigned.

2.4.2 The Contractor shall ensure that the on-site supervisors meet the minimum qualifications in SOW Paragraph 2.3 in the labor trade(s) that they are assigned to supervise.

2.4.3 Supervisors must have the ability to be reached throughout the day to ensure maximum oversight of contractor personnel. Supervisors will identify a backup contact if they are to be unavailable during the workday. In the event a supervisor is absent from the worksite, a qualified replacement must be identified to ensure adequate supervision is still provided to personnel.

2.4.4 The contractor's supervisor(s) is/are the liaison between contractor personnel and PNS Supervisors. The contractor supervision is responsible for ensuring contractor personnel are qualified to perform the assigned work and are performing work in accordance with requirements. PNS is responsible for providing all quality assurance personnel and engineering support that may be required in the assigned tasking.

2.4.5 The contractor's supervisor(s) will manage worker assignments to ships, shifts of work, discipline, safety, rewards, promotion, attendance, time off (i.e. sick and/or annual leave) and work performance.

2.4.6 The contractor's supervisor will select and manage overtime assignments in accordance with their business policy.

2.4.7 On site supervisors will resolve contractor personnel problems (e.g., conflict resolution, tardiness or administrative actions) related to the contractor's employees.

2.5 Contracts Manager

2.5.1 The Key Person shall keep these government points of contact apprised of schedule, technical, material and financial issues pertaining to the contract.

2.5.2 The Key Person shall provide overall management, oversight and supervision (and/or lead workers) to effectively and safely manage the work of the contract.

2.5.3 The Key Person is responsible for ensuring the work of the contract is performed in accordance with the standards, guidelines, and procedures, as stated within the SOW.

2.5.4 The Key Person shall be responsible for the performance and conduct of supervisors assigned to this contract and shall ensure on-site supervision is performing the duties and responsibilities identified in paragraph 2.4.

2.5.5 At least weekly, the Key Person will provide brief metrics or reports validating that the onsite supervisors are executing duties and performing IAW the SOW.

2.6 Government Responsibilities The Government shall provide a computer, work area/surface, and all tooling required for tasking. The Government will provide training and certification for local Receipt Inspection procedures in Certification of Records, Precision Measurement, Inspection Metal Identification, and Hardness Testing.

2.6.1 PNS Supervisors or Managers will provide specific written technical work instructions and shift-to-shift assignments for the contractor supervisors/workers. PNS requires government supervisors to brief government workers before starting each job, and the contractor's workers/supervisors may be asked to be present for those discussions.

3.0 CONTRACT EXECUTION REQUIREMENTS

3.1 Communication All performance-related issues shall be communicated immediately in writing to the Contracting Officer and COR.

3.2 Fully Qualified Employees Contractor employees must be fully qualified in local procedures, precision measuring, metal identification inspections, and hardness testing, with documented certification records.

3.3 Inspection Requirements Vendor personnel are expected to complete at a minimum 8 inspections per inspector per month within the allotted hours identified within the table in SOW paragraph 1.2 once qualification program is complete.

3.4 Onboarding Requirements

3.4.1 Within the first two weeks of arriving at PNS, contractor workers shall successfully complete PNS-provided Familiarization Briefings and Learning Center Proficiency Checks. Documentation of this Training and Proficiency Checks is the objective quality evidence PNS uses to affirmatively validate and record the equivalency of the contractor's training and qualifications. Personnel that are unable to pass the PNS proficiency checks within two attempts must be replaced equally or more qualified personnel.

3.4.2 "Familiarization Briefing" is intended to familiarize contractor employees with PNS specific: (1) shipboard alarms and emergency indicators, (2) danger or caution tags, or other unique safety signage, (3) technical work instruction and drawing formats, (4) Quality Assurance forms, (5) protocols for entering data and signatures in formal work instructions, (6) protocols for using calibrated instruments and recording data and (7) Hazardous Material Controls and Handling.

3.4.3 Radiological Indoctrination. All Contractor employees performing work within the PNS must view a radiological video. Contractor employees who are expected to be on the PNS for greater than thirty (30) calendar days must attend a one-half hour indoctrination briefing. Attendance at the briefing will be required prior to being issued a permanent PNS badge. The indoctrination briefing will provide radiological fundamentals and information on radiological postings and controls at the PNS. Any contractor employee who disregards, alters, moves, or otherwise tampers with a radiological posting, or who disobeys a radiological instruction, will not be allowed to continue working at the PNS.

3.4.4 "Learning Center Proficiency Checks" are intended to validate that the contractor's workforce has the requisite knowledge, proficiency, and skill to accomplish the tasks prescribed in this contract. PNS documents and archives the results of these proficiency checks as objective quality evidence for its trade and training and qualification program. PNS uses the results to affirmatively validate and record the equivalency (to PNS training requirements) of the contractor's training or experience for the specific tasks associated with this order.

3.4.4 The Familiarization Briefing and Proficiency checks include written test and/or hands-on proficiency tests. The contractor will provide adequate supervision during all phases of the onboarding process. Contractor personnel will have a limit of two attempts to achieve a passing grade. Contractor employees who do not pass the Briefings or Proficiency Checks will not be deemed qualified to perform under this contract and will be returned to the contractor for disposition.

3.5 Safety

3.5.1 The contractor shall maintain an emergency reporting protocol that informs the designated PNS Technical Point of Contract immediately (within 2 hours) of any injuries or near misses that occur to contractor employees at PNS.

3.5.2 In the event of injuries sustained in the performance of duty, contractor employees may receive emergency medical aid from shipyard first responders; that treatment shall be on a reimbursable basis unless waived by the Secretary of the Navy. Injured contractor employees shall, if necessary, receive secondary aid and/or evaluation from private providers.

3.5.3 Within 24 hours of occurrence, the contractor shall complete Contracted Employee Injury Report (Attachment 1) (CDRL A001) and submit it to Code 106, Code 133 TPOC, and the COR.

3.5.4 The Contract Manager, Supervisors and Employees shall participate in safety investigations when contractor personnel are involved.

3.5.5 After all investigations are complete, the contractor shall submit, on company letterhead, a final injury report that includes, but is not limited to, an updated summary of the information provided in the Contracted Employee Injury Report, short-term corrective actions taken, and long-term corrective actions.

3.5.6 All contractor reporting must be in compliance with OSHA 29 CFR Part 1904 "Recording and Reporting Occupational Injuries and Illnesses".

4.0 SECURITY/SHIPYARD ACCESS

4.1.1 At a minimum, all Contractor personnel shall be United States citizens and shall possess a Final Department of Defense Personal Security Clearance at the confidential level or higher, in accordance with Attachment 1 (DD Form 254) for performance on this contract. Contractor personnel who lack the required clearance are not permitted to perform under this contract. The contractor must possess a CONFIDENTIAL Facility Clearance prior to award of the Contract.

4.1.1 If the contractor does not currently possess a facility clearance, the contractor may apply to the Defense Security Service to request the clearance. The following link is provided: http://www.dss.mil/isp/fac_clear/fac_clear.html. The government shall not be obligated to delay award of a contract so that a contractor may obtain the required facility clearance.

4.1.2 Contractors must have DBIDS credentials for access to Portsmouth Naval Shipyard. Contractors and any subcontractors must submit contract DD-254 to Portsmouth Naval Shipyard Security Department (Code 1120) for access requirement verification prior to arrival. Additionally, each contractor employee must provide a filled-out DD SECNAV 5512/1, Attachment 2, and provide two (2) forms of ID off from Attachment 3 upon arrival at PNS.

4.1.3 Contractors/subcontractors shall submit Visit Requests via the Joint Personnel Adjudication System (JPAS) to SMO 39040 for visitor clearance verification. Visit requests submitted by other means will not be accepted without Facility Security Officer signed verification as to the level of security clearance granted to each employee on the visit request. Additionally, the contractor must provide a copy of Visit Request to the Code 900R Point of Contact (Fax 207-438-1298) within 7 days of the contract being awarded.

4.1.4 Commercial vehicles (automobiles) must have conspicuous contractor (company) identification (such as magnetic door-type signs) affixed to the outside of the vehicle if it is to enter the Controlled Industrial Area.

4.1.5 Portable Electronic Device (PED): PED Policy Employees, visitors, and contractors will have access to their personal camera enabled PEDs while in the Shipyard's Controlled Industrial Area (CIA) and Security Island spaces. Portable Wearable Fitness Devices (PWFs) that meet the criteria of the PED Policy are allowed in all spaces and shipboard. PWFs are authorized in all areas if: If commercially available in the U.S. or through U.S. military exchange, marketed primarily as fitness or sleep devices, and designated as Federal Communication

Commission (FCC) Class B digital devices (denoted as FCC Class B certified, or FCC Class B exempt). If they have Bluetooth, they receive only Global Positioning System, accelerometer, altimeter, gyroscope, heart activity, vibration feature, or NFC capabilities. Some Security Islands will need to be upgraded to CNIAs based on physical manifestations of NOFORN. An exception to policy security plan is being developed to address current Security Islands needing to be upgraded. Interim Security Controls. Until such time that the Security Islands included on the following slide are upgraded to CNIAs, the following interim security controls will be established and adhered to. These Security Islands will be posted with a prohibited device sign. Unauthorized photography, video, or audio recording within the CIA and Security Island spaces will continue to be strictly forbidden. Please be aware, individuals entering the CIA or Security Island spaces are subject to security inspections. This includes any personal PEDs. Unauthorized photography, video, audio recordings, or other violations of the PED Policy will be documented on a Security Deficiency Log that may result in disciplinary action and potential upload as an incident report to the Defense Counterintelligence and Security Agency Consolidated Adjudication Services with potential impact to your security clearance.

5.0 TECHNICAL CONFERENCES / REVIEW MEETINGS

5.1 Meetings: The Contractor shall attend bi-weekly status meetings with Government personnel to discuss contract execution and performance. Attendance is required, via phone or in person, by employees of the contractor who have the ability to make business decisions on behalf of the contractor, are able to speak to the current and forecasted financial status of the contract, and knowledgeable of the day-to-day operations of the contract.

5.2 Reports: The Contractor shall provide Bi-Weekly Status Reports (CDRL A002) The weekly status meetings may be reduced to a bi-weekly cadence if mutually agreed upon by the contractor, and Code 133 and the Code 400 Contracting Officer. Meeting Minutes will be submitted no later than three business days after the meeting occurs. (CDRL A003)

5.3 Interim Meetings: The Government may request additional meetings (Quarterly, Emergency, etc....) in the event contractor performance issues arise that require discussion, review, mitigation, or resolution. The contractor may request an additional meeting, if required, to discuss any issues or concerns that arise during performance. These interim meetings will be utilized as means to mitigate any performance related issues or concerns that would prevent successful execution of work.

5.4 Kickoff Meeting: The vendor will attend a kickoff meeting within 14 days of award. Attendance from the contractor will include at a minimum the supervisor assigned, contracts manager, and an individual with whom can speak to current and forecasted financial status of the contract.

6.0 DELIVERABLES

6.1 The Contractor shall deliver fully trained and proficient employees that meets the requirement of paragraph 2.0 of this SOW. The contractor employees must have appropriate security clearance, and complete skills proficiency as specified within this Contract and its resultant TO's.

6.2 The Contractor shall provide PNS with detailed employee Training Record(s) and certification of employee qualifications, both training and medical, stating employee is either currently qualified or will be qualified upon start date at PNS. The Contractor shall submit the Certification of Qualification Records on company letterhead no later than 7 days after award of contract.

6.3 The Contractor shall provide Weekly and Monthly Status Reports containing the metrics identified in paragraph 5.0 of the SOW. (CDRL A002)

6.4 Security Status: The Contractor shall provide security clearance validation for contracted employees to PNS within seven (7) days after award.

Requirements

Receipt Inspectors to support the Receipt Inspection Services within the Quality Assurance (QA) Department

Additional Regulation or Supplemental Clauses Incorporated by Full Text

- (a) Department means the Department of the Navy.
- (b) Commander, Naval Sea Systems Command means the Commander of the Naval Sea Systems Command of the Department of the Navy or his duly appointed successor.
- (c) References to The Federal Acquisition Regulation (FAR) All references to the FAR in this contract shall be deemed to also reference the appropriate sections of the Defense FAR Supplement (DFARS), unless clearly indicated otherwise.
- (d) National Stock Numbers Whenever the term Federal Item Identification Number and its acronym FIIN or the term Federal Stock Number and its acronym FSN appear in the contract, order or their cited specifications and standards, the terms and acronyms shall be interpreted as National Item Identification Number (NIIN) and National Stock Number (NSN) respectively which shall be defined as follows:
- (1) National Item Identification Number (NIIN). The number assigned to each approved Item Identification under the Federal Cataloging Program. It consists of nine numeric characters, the first two of which are the National Codification Bureau (NCB) Code. The remaining positions consist of a seven digit nonsignificant number.
 - (2) National Stock Number (NSN). The National Stock Number (NSN) for an item of supply consists of the applicable four-position Federal Supply Class (FSC) plus the applicable nine-position NIIN assigned to the item of supply.

(End of Text)

C-204-H001 USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES (Oct 2018)

- (a) NAVSEA may use a file room management support contractor, hereinafter referred to as "the support contractor", to manage its file room, in which all official contract files, including the official file supporting this procurement, are retained. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, hereinafter referred to as "protected information". File room management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.
- (b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file room management services are acquired will contain a requirement that:
- (1) The support contractor not disclose any information;
 - (2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files;
 - (3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,
 - (4) In addition to any other rights the contractor may have, it is a third party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed protected information, for the unauthorized duplication, release, or disclosure of such protected information.
- (c) Execution of this contract by the contractor is considered consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file room management support contractor for the limited purpose of executing its file room support contract responsibilities.
- (d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Contractors should enter into separate non-disclosure agreements with the file room contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the file room or otherwise encumber the government.

(End of Text)

C-211-H018 APPROVAL BY THE GOVERNMENT (NAVSEA) (JAN 2019)

(Jan 2019)

Approval by the Government as required under this contract and applicable specifications shall not relieve the Contractor of its obligation to comply with the specifications and with all other requirements of the contract, nor shall it impose upon the Government any liability it would not have had in the absence of such approval.

(End of Text)

C-223-W002 ON-SITE SAFETY REQUIREMENTS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) The contractor shall ensure that each contractor employee reads any necessary safety documents within 30 days of commencing performance at any Government facility. Required safety documents can be obtained from the respective safety office. Contractors shall notify the Safety office points of contact below to report completion of the required training via email. The email shall include the contractor employee's name, work site, and contract number.

(b) It is expected that contractor employees will have received training from their employer on hazards associated with the areas in which they will be working and know what to do in order to protect themselves. Contractors are required to adhere to the requirements of 29 CFR 1910, 29 CFR 1926 and applicable state and local requirements while in Government spaces. The contractor shall ensure that all on-site contractor work at the Government facility is in accordance with any local safety instructions as provided via the COR. The contractor shall report all work-related injuries/illnesses that occurred while working at the Government site to the COR.

(c) Contractors whose employees perform work within Government spaces in excess of 1000 hours per calendar quarter during a calendar year shall submit the data elements on OSHA Form 300A, Summary of Work Related Injuries and Illnesses, for those employees to the safety office, via the COR by 15 January for the previous calendar year, even if no work related injuries or illnesses occurred. If a contractor's injury/illness rates are above the Bureau of Labor Statistics industry standards, a safety assessment may be performed by the Safety Office to determine if any administrative or engineering controls can be utilized to prevent further injuries/illnesses, or if any additional Personal Protective Equipment or training will be required.

(d) Any contractor employee exhibiting unsafe behavior may be removed from the Government site. Such removal shall not relieve the contractor from meeting its contractual obligations and shall not be considered an excusable delay as defined in FAR 52.249-14.

(e) The Safety Office points of contacts are as follows:

CODE 106

Phone: 207-438-2001

(End of Text)

**C-227-H010 COMPUTER SOFTWARE AND COMPUTER DATA BASES DELIVERED TO OR
RECEIVED FROM THE GOVERNMENT (NAVSEA) (JAN 2019)**

(Jan 2019)

(a) The Contractor agrees to test for viruses, malware, Trojan Horses, and other security threats such as those listed in NIST Special Publication 800-12 Rev 1, An Introduction to Computer Security, The NIST Handbook, Chapter 4, in all computer software and computer data bases (as defined in the clause entitled "Rights In Noncommercial Computer Software and Noncommercial Computer Software Documentation" (DFARS 252.227-7014)), before delivery of that computer software or computer data base in whatever media and on whatever system the computer software or data base is delivered whether delivered separately or imbedded within delivered equipment. The Contractor warrants that when delivered any such computer software and computer data base shall be free of viruses, malware, Trojan Horses, and other security threats such as those listed in NIST Special Publication 800-12 Rev 1.

(b) The Contractor agrees that prior to use under this contract, it shall test any computer software and computer data base received from the Government for viruses, malware, Trojan Horses, and other security threats listed in NIST Special Publication 800-12 Rev 1, An Introduction to Computer Security, The NIST Handbook, Chapter 4.

(c) Any license agreement governing the use of any computer software or computer software documentation delivered to the Government as a result of this contract must be paid-up, irrevocable, world-wide, royalty-free, perpetual and flexible (user licenses transferable among Government employees and personnel under Government contract).

- (d) The Contractor shall not include or permit to be included any routine to enable the contractor or its subcontractor(s) or vendor(s) to disable the computer software or computer data base after delivery to the Government.
- (e) No copy protection devices or systems shall be used in any computer software or computer data base delivered under this contract with unlimited or Government purpose rights (as defined in DFARS 252.227-7013 and 252.227-7014) to restrict or limit the Government from making copies.
- (f) It is agreed that, to the extent that any technical or other data is computer software by virtue of its delivery in digital form, the Government shall be licensed to use that digital-form data with exactly the same rights and limitations as if the data had been delivered as hard copy.
- (g) Any limited rights legends or other allowed legends placed by a Contractor on technical data or other data delivered in digital form shall be digitally included on the same media as the digital-form data and must be associated with the corresponding digital-form technical data to which the legend(s) apply to the extent possible. Such legends shall also be placed in human-readable form on a visible surface of the media carrying the digital-form data as delivered, to the extent possible.

(End of Text)

C-237-H002 SUBSTITUTION OF KEY PERSONNEL (NAVSEA) (OCT 2018)

(Oct 2018)

- (a) The Contractor agrees that a partial basis for award of this contract is the list of key personnel proposed. Accordingly, the Contractor agrees to assign to this contract those key persons whose resumes were submitted with the proposal necessary to fulfill the requirements of the contract. No substitution shall be made without prior notification to and concurrence of the Contracting Officer in accordance with this requirement. Substitution shall include, but not be limited to, subdividing hours of any key personnel and assigning or allocating those hours to another individual not approved as key personnel.
- (b) All proposed substitutes shall have qualifications equal to or higher than the qualifications of the person to be replaced. The Contracting Officer shall be notified in writing of any proposed substitution at least forty-five (45) days, or ninety (90) days if a security clearance is to be obtained, in advance of the proposed substitution. Such notification shall include: (1) an explanation of the circumstances necessitating the substitution; (2) a complete resume of the proposed substitute; (3) an explanation as to why the proposed substitute is considered to have equal or better qualifications than the person being replaced; (4) payroll record of the proposed replacement; and (5) any other information requested by the Contracting Officer to enable him/her to judge whether or not the Contractor is maintaining the same high quality of personnel that provided the partial basis for award.
- (c) Key personnel are identified in an attachment in Section J.

(End of Text)

**C-237-W001 ELECTRONIC COST REPORTING AND FINANCIAL TRACKING (eCRAFT)
SYSTEM REPORTING (NAVSEA) (MAY 2022)**

(May 2022)

- (a) The Contractor agrees to upload the Contractor's Funds and Man-hour Expenditure Reports in the Electronic Cost Reporting and Financial Tracking (eCRAFT) System and submit the Contract Status Report on the day and for the same timeframe the contractor submits an invoice into the Wide Area Workflow (WAWF) module on the Procurement Integrated Enterprise Environment (PIEE) system. Compliance with this requirement is a material requirement of this contract. Failure to comply with this requirement may result in contract termination.
- (b) The Contract Status Report indicates the progress of work and the status of the program and of all assigned tasks. It informs the Government of existing or potential problem areas.
- (c) The Contractor's Fund and Man-hour Expenditure Report reports contractor expenditures for labor, materials, travel, subcontractor usage, and other contract charges.
- (1) Access: eCRAFT: Reports are uploaded through the eCRAFT System Periodic Report Utility (EPRU). The EPRU spreadsheet and user manual can be obtained at: <https://www.navsea.navy.mil/Home/Warfare-Centers/NUWC-Newport/Partnerships/Commercial-Contracts/Information-eCraft/> under eCRAFT information. The link for eCRAFT report submission is: https://www.pdrep.csd.disa.mil/pdrep_files/other/ecraft.htm. If you have problems uploading reports, please see the Frequently Asked Questions at the site address above.

(2) Submission and Acceptance/Rejection: The contractor shall submit their reports on the same day and for the same timeframe the contractor submits an invoice in WAWF. The amounts shall be the same. eCRAFT acceptance/rejection will be indicated by e-mail notification from eCRAFT.

(End of Text)

C-242-H001 EXPEDITING CONTRACT CLOSEOUT (NAVSEA) (OCT 2018)

(Oct 2018)

(a) As part of the negotiated fixed price or total estimated amount of this contract, both the Government and the Contractor have agreed to waive any entitlement that otherwise might accrue to either party in any residual dollar amount of \$1,000 or less at the time of final contract closeout. The term "residual dollar amount" shall include all money that would otherwise be owed to either party at the end of the contract, except that, amounts connected in any way with taxation, allegations of fraud and/or antitrust violations shall be excluded. For purposes of determining residual dollar amounts, offsets of money owed by one party against money that would otherwise be paid by that party may be considered to the extent permitted by law.

(b) This agreement to waive entitlement to residual dollar amounts has been considered by both parties. It is agreed that the administrative costs for either party associated with collecting such small dollar amounts could exceed the amount to be recovered.

(End of Text)

Section D - Packaging and Marking

Section E - Inspection and Acceptance

Additional Regulation or Supplemental Clauses Incorporated by Full Text

E-246-H013 INSPECTION AND ACCEPTANCE OF DATA (NAVSEA) (OCT 2018) (Oct 2018)

Inspection and acceptance of all data shall be as specified on the attached Contract Data Requirements List(s), DD Form 1423.

(End of Text)

E-246-H022 INSPECTION AND TEST RECORDS (NAVSEA) (JAN 2019) (Jan 2019)

Inspection and test records shall, as a minimum, indicate the nature of the observations, number of observations made, and the number and type of deficiencies found. Data included in inspection and test records shall be complete and accurate, and shall be used for trend analysis and to assess corrective action and effectiveness. The data shall, on request, be identified and made available for on-site review by the Contracting Officer or designated Government representative.

(End of Text)

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Other Instructions: Inspection and acceptance will be completed at government facility. DoDAAC: N39040 CountryCode: USA PORTSMOUTH NAVAL SHIPYARD GF RECEIVING OFFICER, BUILDING 170 KITTERY, ME 03904-5000 UNITED STATES Nick Gilman, Contracting Officer's Representative Email: nicholas.t.gilman.civ@us.navy.mil Telephone: (207) 994- 0693
0002	Inspection and Acceptance Location Both Other Instructions: Inspection and acceptance will be completed at government facility. DoDAAC: N39040 CountryCode: USA PORTSMOUTH NAVAL SHIPYARD GF RECEIVING OFFICER, BUILDING 170 KITTERY, ME 03904-5000 UNITED STATES Nick Gilman, Contracting Officer's Representative Email: nicholas.t.gilman.civ@us.navy.mil Telephone: (207) 994- 0693
Option Line Item 1001	Inspection and Acceptance Location Both

	Other Instructions: Inspection and acceptance will be completed at government facility. DoDAAC: N39040 CountryCode: USA PORTSMOUTH NAVAL SHIPYARD GF RECEIVING OFFICER, BUILDING 170 KITTERY, ME 03904-5000 UNITED STATES Nick Gilman, Contracting Officer's Representative Email: nicholas.t.gilman.civ@us.navy.mil Telephone: (207) 994- 0693
Option Line Item 1002	Inspection and Acceptance Location Both Other Instructions: Inspection and acceptance will be completed at government facility. DoDAAC: N39040 CountryCode: USA PORTSMOUTH NAVAL SHIPYARD GF RECEIVING OFFICER, BUILDING 170 KITTERY, ME 03904-5000 UNITED STATES Nick Gilman, Contracting Officer's Representative Email: nicholas.t.gilman.civ@us.navy.mil Telephone: (207) 994- 0693
Option Line Item 2001	Inspection and Acceptance Location Both Other Instructions: Inspection and acceptance will be completed at government facility. DoDAAC: N39040 CountryCode: USA PORTSMOUTH NAVAL SHIPYARD GF RECEIVING OFFICER, BUILDING 170 KITTERY, ME 03904-5000 UNITED STATES Nick Gilman, Contracting Officer's Representative Email: nicholas.t.gilman.civ@us.navy.mil Telephone: (207) 994- 0693
Option Line Item 2002	Inspection and Acceptance Location Both Other Instructions: Inspection and acceptance will be completed at government facility. DoDAAC: N39040 CountryCode: USA PORTSMOUTH NAVAL SHIPYARD GF RECEIVING OFFICER, BUILDING 170 KITTERY, ME 03904-5000 UNITED STATES Nick Gilman, Contracting Officer's Representative Email: nicholas.t.gilman.civ@us.navy.mil Telephone: (207) 994- 0693

Section F - Deliveries or Performance

Overall Contract Delivery Period

Contractor
Destination

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery On Or Before Delivery Date 26 Apr 2027 Period of Performance From 27 Apr 2026 To 26 Apr 2027	12 Months	Place of Performance DoDAAC: N39040 CountryCode: USA PORTSMOUTH NAVAL SHIPYARD GF RECEIVING OFFICER, BUILDING 170 KITTERY, ME 03904-5000 UNITED STATES Receiving Officer, Receiving Telephone: 207-438-5206
0002	Delivery On Or Before Delivery Date 26 Apr 2027 Period of Performance From 27 Apr 2026 To 26 Apr 2027	12 Months	Place of Performance DoDAAC: N39040 CountryCode: USA PORTSMOUTH NAVAL SHIPYARD GF RECEIVING OFFICER, BUILDING 170 KITTERY, ME 03904-5000 UNITED STATES Receiving Officer, Receiving Telephone: 207-438-5206
Option Line Item 1001	Delivery On Or Before Delivery Date 26 Apr 2028 Period of Performance From 27 Apr 2027 To 26 Apr 2028	12 Months	Place of Performance DoDAAC: N39040 CountryCode: USA PORTSMOUTH NAVAL SHIPYARD GF RECEIVING OFFICER, BUILDING 170 KITTERY, ME 03904-5000 UNITED STATES Receiving Officer, Receiving Telephone: 207-438-5206
	Delivery On Or Before	12 Months	Place of Performance

Option Line Item 1002	Delivery Date 26 Apr 2028 Period of Performance From 27 Apr 2027 To 26 Apr 2028		DoDAAC: N39040 CountryCode: USA PORTSMOUTH NAVAL SHIPYARD GF RECEIVING OFFICER, BUILDING 170 KITTERY, ME 03904-5000 UNITED STATES Receiving Officer, Receiving Telephone: 207-438-5206
Option Line Item 2001	Delivery On Or Before Delivery Date 26 Apr 2029 Period of Performance From 27 Apr 2028 To 26 Apr 2029	12 Months	Place of Performance DoDAAC: N39040 CountryCode: USA PORTSMOUTH NAVAL SHIPYARD GF RECEIVING OFFICER, BUILDING 170 KITTERY, ME 03904-5000 UNITED STATES Receiving Officer, Receiving Telephone: 207-438-5206
Option Line Item 2002	Delivery On Or Before Delivery Date 26 Apr 2029 Period of Performance From 27 Apr 2028 To 26 Apr 2029	12 Months	Place of Performance DoDAAC: N39040 CountryCode: USA PORTSMOUTH NAVAL SHIPYARD GF RECEIVING OFFICER, BUILDING 170 KITTERY, ME 03904-5000 UNITED STATES Receiving Officer, Receiving Telephone: 207-438-5206

Additional Regulation or Supplemental Clauses Incorporated by Full Text

F-247-H001 DELIVERY OF DATA (NAVSEA) (OCT 2018)

(Oct 2018)

All data to be furnished under this contract shall be delivered prepaid to the destination(s) and at the time(s) specified on the Contract Data Requirements List(s), DD Form 1423.

(End of Text)

Section G - Contract Administration Data

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause--

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall--

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>.

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order: **N3904026TBD**

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items--

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

N/A

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

COMBO

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	TBD
Issue By DoDAAC	TBD
Admin DoDAAC**	TBD
Inspect By DoDAAC	TBD
Ship To Code	TBD
Ship From Code	TBD
Mark For Code	TBD
Service Approver (DoDAAC)	TBD
Service Acceptor (DoDAAC)	TBD

Accept at Other DoDAAC	TBD
LPO DoDAAC	TBD
DCAA Auditor DoDAAC	TBD
Other DoDAAC(s)	TBD

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

Local WAWF Helpdesk: WAWF_N39040@navy.mil

NAVSEA HQ WAWF Helpdesk: WAWFHQ@navy.mil

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

COR

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

G-216-H001 FIXED FEE WITHHOLD--FAR 52.216-8 CLARIFICATION (NAVSEA) (OCT 2018) (Oct 2018)

The Government will withhold 15% of each fixed fee payment starting with the first invoice submitted until a total of \$100,000 of fixed fee has been withheld. Withheld amounts will be released in accordance with FAR 52.216-8, Fixed Fee.

(End of Text)

G-232-H005 SUPPLEMENTAL INSTRUCTIONS REGARDING INVOICING (NAVSEA) (JAN 2019) (Jan 2019)

(a) For other than firm fixed priced contract line item numbers (CLINs), the Contractor agrees to segregate costs incurred under this contract/task order (TO), as applicable, at the lowest level of performance, either at the sub line item number (SLIN) or CLIN level, rather than at the total contract/TO level, and to submit invoices reflecting costs incurred at that level. Supporting documentation in Wide Area Workflow (WAWF) for invoices shall include summaries of work charged during the period covered as well as overall cumulative summaries by individual labor categories, rates, and hours (both straight time and

overtime) invoiced; as well as, a cost break down of other direct costs (ODCs), materials, and travel, by technical instruction (TI), SLIN, or CLIN level. For other than firm fixed price subcontracts, subcontractors are also required to provide labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost breakdown of ODCs, materials, and travel invoiced. Supporting documentation may be encrypted before submission to the prime contractor for WAWF invoice submittal. Subcontractors may email encryption code information directly to the Contracting Officer and Contracting Officer Representative (COR). Should the subcontractor lack encryption capability, the subcontractor may also email detailed supporting cost information directly to the Contracting Officer and COR; or other method as agreed to by the Contracting Officer.

(b) Contractors submitting payment requests and receiving reports to WAWF using either Electronic Data Interchange (EDI) or Secure File Transfer Protocol (SFTP) shall separately send an email notification to the COR and Contracting Officer on the same date they submit the invoice in WAWF. No payments shall be due if the contractor does not provide the COR and Contracting Officer email notification as required herein.

(End of Text)

G-242-H001 GOVERNMENT CONTRACT ADMINISTRATION POINTS-OF-CONTACT AND RESPONSIBILITIES (NAVSEA) (OCT 2023) (Oct 2023)

(a) The Government reserves the right to administratively substitute any of the points of contact listed below at any time.

(b) The contracting officer is the only person authorized to change this contract or orders issued thereunder. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as part of this contract. If, in the opinion of the contractor, an effort outside the existing scope of this contract is requested, the contractor shall promptly comply with the Notification of Changes clause of this contract.

(c) The points of contact are as follows:

(i) The Procuring Contracting Officer (PCO) is:

See Box 31 on page 1

(ii) The Contract Specialist is:

Name: Marilyn Fletcher
Portsmouth Naval Shipyard
Kittery, Maine 03904
Phone: (207) 438-6349
E-mail: marilyn.g.fletcher2.civ@us.navy.mil

(iii) The Administrative Contracting Officer (ACO) is:

Name: Anthony Barker
Portsmouth Naval Shipyard
Kittery, ME 03904
Phone: (207) 994-1946
E-mail: anthony.j.barker24.civ@us.navy.mil

(d) The Contracting Officer's Representative (COR) is the contracting officer's appointed representative for technical matters. The COR is not a contracting officer and does not have the authority to direct the accomplishment of effort which is beyond the scope of the contract or to otherwise change any contract requirements. An informational copy of the COR appointment letter, which provides a delineation of COR authority and responsibilities, will be provided upon award of this contract.

The Contracting Officer's Representative (COR) is:

Name: Nick Gilman
Portsmouth Naval Shipyard
Kittery, Maine 03904
Phone: (207) 994-0693
E-mail: nicholas.t.gilman.civ@us.navy.mil

(e) The Alternate Contracting Officer's Representative (ACOR) is responsible for COR responsibilities and functions in the event that the COR is unavailable due to leave, illness, or other official business. The ACOR is appointed by the contracting officer; a copy of the ACOR appointment will be provided upon award of this contract.

The Alternate Contracting Officer's Representative (ACOR) is:

Name: Mark Duffy
Portsmouth Naval Shipyard
Kittery, Maine 03904
Phone: (207) 451-3812
E-mail: mark.p.duffy.civ@us.navy.mil

(f) The Technical Point of Contact (TPOC) is the contracting officer's representative for technical matters when a COR is not appointed. The TPOC is responsible for technical issues of contract administration, such as providing all items of Government Furnished Information (GFI), Government Furnished Material (GFM) and Government Furnished Equipment (GFE) if specified in the contract as well as the inspection and acceptance of all contract deliverables.

The Technical Point of Contact (TPOC) is:

Name: Kyle Scouten
Portsmouth Naval Shipyard
Kittery, Maine 03904
Phone: (207) 438-5992
E-mail: kyle.a.scouten.civ@us.navy.mil

(g) The Alternate Technical Point of Contact (ATPOC) is responsible for TPOC responsibilities and functions in the event that the TPOC is unavailable due to leave, illness, or other official business.

The Alternate Technical Point of Contact (ATPOC) is:

Name: Jibran Smith
Portsmouth Naval Shipyard
Kittery, Maine 03904
Phone: (207) 438-6530
E-mail: jibran.d.smith.civ@us.navy.mil

(h) The Authorized Ordering Person(s) for Per-Call Maintenance is responsible for issuing and maintaining records for any per-call orders for remedial maintenance placed under this contract. No per-call order shall be placed outside the scope of this contract and the cumulative total of all orders shall not be in excess of any not-to-exceed amount specified in the contract. Per-call orders shall not, in any way, modify any terms and conditions of the contract.

(i) The Authorized Ordering Person(s) for Per-Call Maintenance is:

Name: [*]
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx];
E-mail: [*]

(j) The Contractor's point of contact for performance under this contract is:

Name: [*]
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

[*] To be completed at contract award

(End of Text)

G-242-H002 HOURS OF OPERATION AND HOLIDAY SCHEDULE (NAVSEA) (JUL 2021)

(Jul 2021)

G-242-H002 HOURS OF OPERATION AND HOLIDAY SCHEDULE (NAVSEA) (JUL 2021)

(a) The policy of this activity is to schedule periods of reduced operations or shutdown during holiday periods. Deliveries will not be accepted on Saturdays, Sundays or Holidays except as specifically requested by the **Portsmouth Naval Shipyard**. All goods or services attempted to be delivered on a Saturday, Sunday or Holiday without specific instructions from the Contracting Officer or his duly appointed representative will be returned to the contractor at the contractor's expense with no cost or liability to the U.S. Government.

(b) The federal Government observes public Holidays that have been established under 5 U.S.C. 6103. The actual date of observance for each of the holidays, for a specific calendar year, may be obtained from the OPM website at OPM.GOV or by using the following direct link:

<https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>.

(c) Delayed Opening, Early Dismissal and Closure of Government Facilities. When a Government facility has a delayed opening, is closed or Federal employees are dismissed early (due to severe weather, security threat, security exercise, or a facility related problem) that prevents personnel from working, onsite contractor personnel regularly assigned to work at that facility shall follow the same reporting and/or departure directions given to Government personnel. The contractor shall not direct charge to the contract for such time off, but shall follow parent company policies regarding taking leave (administrative or other). Non-essential contractor personnel, who are not required to remain at or report to the facility, shall follow their parent company policy regarding whether they should go /stay home or report to another company facility. Subsequent to an early dismissal, delayed opening, or during periods of inclement weather, onsite contractors should monitor the OPM website as well as radio and television announcements before departing for work to determine if the facility is closed or operating on a delayed arrival basis.

(d) When Federal employees are excused from work due to a holiday or a special event (that is unrelated to severe weather, a security threat, or a facility related problem), on site contractors shall continue working established work hours or take leave in accordance with parent company policy. Those contractor employees who take leave shall not direct charge the non-working hours to the contract.

Contractors are responsible for predetermining and disclosing their charging practices for early dismissal, delayed openings, or closings in accordance with the FAR, applicable cost accounting standards, and the company's established policy and procedures. Contractors shall follow their disclosed charging practices during the contract period of performance, and shall not follow any verbal directions to the contrary. The Contracting Officer will make the determination of cost allowability for time lost due to facility closure in accordance with FAR, applicable Cost Accounting Standards, and the Contractor's established accounting policy and procedures.

(e) If you intend to visit the Contracts Office, it is advised that you call for an appointment at least 24 hours in advance.

(f) The hours of operation are as follows:

AREA	FROM	TO
Portsmouth Naval Shipyard	0600	1300
Kittery ME 03904		

(g) All deliveries to the Receiving Officer, **Portsmouth Naval Shipyard**, shall be made Monday through Friday from **0600** to **1300**, local time. Deliveries will not be accepted after **1300 unless prior coordination with the Contracting Officer Representative (COR) noted in G-242-H001**. No deliveries will be accepted on federal government holidays.

(End of text)

Section H - Special Contract Requirements

Additional Regulation or Supplemental Clauses Incorporated by Full Text

**H-209-H004 RESTRICTIONS RESULTING FROM POTENTIAL ORGANIZATIONAL
CONFLICT OF INTEREST (NAVSEA) (NOV 2022)**

(Nov 2022)

- (a) "Organizational Conflict of Interest" means that because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. "Person" as used herein includes Corporations, Partnerships, Joint Ventures, and other business enterprises.
- (b) It is recognized that the effort to be performed by the Contractor under this contract may create a potential organizational conflict of interest on the instant contract or on a future acquisition. In order to avoid this potential conflict of interest, and at the same time to avoid prejudicing the best interest of the Government, the right of the Contractor to participate in future procurement of equipment or services that are the subject of any work under this contract shall be limited in accordance with FAR 9.5.
- (c) The Contractor agrees that to prevent the existence of conflicting roles and unfair competitive advantage, during the performance of this contract and for a period of three years after completion of performance of this contract, the Contractor, any affiliate, subcontractor, consultant, or employee of the Contractor, any joint venture, any entity into or with which it may subsequently merge or affiliate, or any other successor or assign of the Contractor, shall not furnish to the United States Government, either as a prime contractor or as a subcontractor, or as a consultant to a prime contractor or subcontractor, any system, component or services which is the subject of the work to be performed under this contract, unless an exception under FAR 9.505 exists. This exclusion also does not apply to any work covered by FAR 9.505-2 (a)(3) or (b)(3) or recompetition for those systems, components or services furnished pursuant to this contract.
- (d) Nothing in this requirement is intended to prohibit or preclude the Contractor from marketing or selling to the United States Government its product lines in existence on the effective date of this contract; nor, shall this requirement preclude the Contractor from participating in any research and development or delivering any design development model or prototype of any such equipment. Additionally, sale of catalog or standard commercial items are exempt from this requirement.
- (e) The Contractor shall include this requirement in subcontracts of any tier which involve access to information or situations/conditions covered by the preceding paragraphs, substituting "subcontractor" for "contractor" where appropriate.
- (f) The rights and remedies described herein shall not be exclusive and are in addition to other rights and remedies provided by law or elsewhere included in this contract.
- (g) Compliance with this requirement is a material requirement of this contract.

(End of Text)

**H-209-H003 REQUIRED DISCLOSURE OF ORGANIZATIONAL CONFLICT OF INTEREST
(NAVSEA) (NOV 2022)**

(Nov 2022)

- (a) "Organizational Conflict of Interest" means that because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. "Person" as used herein includes Corporations, Partnerships, Joint Ventures, and other business enterprises.

- (b) The Contractor warrants that to the best of its knowledge and belief, and except as otherwise set forth in the contract, at the time of execution of this contract the Contractor does not have any organizational conflict of interest(s) as defined in paragraph (a).
- (c) The Contractor agrees that, if after award, it discovers an actual or potential organizational conflict of interest, it shall make immediate and full disclosure in writing to the Contracting Officer. The notification shall include a description of the actual or potential organizational conflict of interest, a description of the action which the Contractor has taken or proposes to take to avoid, mitigate, or neutralize the conflict, and any other relevant information that would assist the Contracting Officer in making a determination on this matter. Notwithstanding this notification, the Government may terminate the contract for the convenience of the Government if determined to be in the best interest of the Government.
- (d) Notwithstanding paragraph (c) above, if the Contractor was aware, or should have been aware, of an organizational conflict of interest prior to the award of this contract or becomes, or should become, aware of an organizational conflict of interest after award of this contract and does not make an immediate and full disclosure in writing to the Contracting Officer, the Government may terminate this contract for default.
- (e) If the Contractor fails to take action required by this requirement, or required by the Contracting Officer upon receipt of the Contractor's disclosure required by paragraph (c), the Government may terminate this contract for default.
- (f) The Contracting Officer's decision as to the existence or nonexistence of an actual or potential organizational conflict of interest shall be final.
- (g) The Contractor shall promptly notify the Contracting Officer, in writing, if it has been tasked to evaluate or advise the Government concerning its own products or activities, those of its subcontractors, those of one of its prime contractors (to which the contractor is a subcontractor), or those of a competitor in order to ensure proper safeguards exist to guarantee objectivity and to protect the Government's interest.
- (h) The Contractor shall include this requirement in subcontracts of any tier which involve access to information or situations/conditions covered by the preceding paragraphs, substituting "subcontractor" for "contractor" where appropriate.
- (i) The rights and remedies described herein shall not be exclusive and are in addition to other rights and remedies provided by law or elsewhere included in this contract.
- (j) Compliance with this requirement is a material requirement of this contract.

(End of Text)

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-21	Basic Safeguarding of Covered Contractor Information Systems.	Nov 2021		
52.233-3	Protest after Award.	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		

FAR Clauses Incorporated by Full Text

52.217-8 Option to Extend Services. (Nov 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 15 days of contract expiration.

(End of clause)

52.217-9 Option to Extend the Term of the Contract. (Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 days of contract expiration; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 3 years.

(End of clause)

52.244-2 Subcontracts. (Jun 2020)

Subcontracts (Jun 2020)

(a) *Definitions.* As used in this clause-

"Approved purchasing system" means a Contractor's purchasing system that has been reviewed and approved in accordance with part 44 of the Federal Acquisition Regulation (FAR).

"Consent to subcontract" means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

Subcontract means any contract, as defined in FAR subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that-

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds-

- (i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or
- (ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.
- (d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts: Contracts Involving Labor Hours
- (e) (1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:
- (i) A description of the supplies or services to be subcontracted.
 - (ii) Identification of the type of subcontract to be used.
 - (iii) Identification of the proposed subcontractor.
 - (iv) The proposed subcontract price.
 - (v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.
 - (vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.
 - (vii) A negotiation memorandum reflecting-
 - (A) The principal elements of the subcontract price negotiations;
 - (B) The most significant considerations controlling establishment of initial or revised prices;
 - (C) The reason certified cost or pricing data were or were not required;
 - (D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;
 - (E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;
 - (F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and
 - (G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.
- (2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (b), (c), or (d) of this clause.
- (f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination-
- (1) Of the acceptability of any subcontract terms or conditions;
 - (2) Of the allowability of any cost under this contract; or
 - (3) To relieve the Contractor of any responsibility for performing this contract.
- (g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).
- (h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.
- (i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR subpart 44.3.
- (j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations:
-

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements. (Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

- (3) Final Level 2 (Self).
- (4) Conditional Level 2 (C3PAO).
- (5) Final Level 2 (C3PAO).
- (6) Conditional Level 3 (DIBCAC).
- (7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: ____
Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

Section J - List of Attachments

Exhibits:

Id	Exhibit Name	Exhibit Description	Reference Identifier	Date	Line Item
A	Exhibit A CDRL 001,002,003	Contract Data Requirements List (CDRL)		11 Feb 2026	

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	Attachment 1 OPSEC & Wage Determination	Wage Determination		11 Feb 2026
02	Attachment 2 Staffing Plan			11 Feb 2026
03	Attachment 3 Cost_Proposal_Spreadsheet			11 Feb 2026
04	Attachment 4 QASP & Matrix			11 Feb 2026
05	Attachment 5 Past Performance			11 Feb 2026
06	Attachment 6 DD Form 254	Contract Security Classification Specification (DD 254)		11 Feb 2026
07	Attachment 7 Amended for Q&A Section L Evaluation of Offerors			05 Mar 2026

Section K - Representations, Certification, & Other Statements**Section L - Instructions, Conditions, & Notices to Offerors or Quoters****CLAUSES INCORPORATED BY REFERENCE**

52.204-7	System for Award Management	NOV 2024
52.204-22	Alternative Line Item Proposal	JAN 2017
52.215-1	Instructions to Offerors - Competitive Acquisition	NOV 2021
52.215-16	Facilities Capital Cost of Money	JUN 2003
52.215-22	Limitation on Pass-Through Charges-Identification of Subcontract Effort	OCT 2009
52.237-10	Identification of Uncompensated Overtime	MAR 2015
252.215-7008	Only One Offer	DEC 2022
252.215-7010	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data - Basic	MAY 2024
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors	JAN 2023
252.219-7000	Advancing Small Business Growth	JUN 2023
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China	AUG 2022

CLAUSES INCORPORATED BY FULL TEXT**52.211-14 NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY USE PROGRAM (APR 2008)**

Any Task Order awarded as a result of this solicitation will be a DO-C9 rated order certified for national defense use under the Defense Priorities and Allocations System (DPAS) (15 CFR 700), and the Contractor will be required to follow all of the requirements of this regulation.

52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a **Cost-Plus Fixed Fee** contract resulting from this solicitation.

52.233-2 SERVICE OF PROTEST (SEP 2006)

(a) *Protests*, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgement of receipt from:

Contracting Officer: Anthony Barker

Email: anthony.j.barker24.civ@us.navy.mil

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make its full text available. The Offeror is cautioned that the listed provisions may include blocks that must be completed by the Offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the Offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this address: <https://www.acquisition.gov/>

L-204-H003 NOTIFICATION OF USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES (NAVSEA) (APR 2019)

(a) NAVSEA may use a contractor to manage official contract files hereinafter referred to as "the support contractor", including the official file supporting this procurement. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, hereinafter referred to as "protected information". File management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.

(b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file management services are acquired will contain a requirement that

(1) The support contractor not disclose any information,

(2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files,

(3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,

(4) In addition to any other rights the Offeror may have, it is a third party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed Protected Information, for the unauthorized duplication, release, or disclosure of such Protected Information.

(c) Submission of a proposal will be considered as consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file management support contractor for the limited purpose of executing its file support contract responsibilities.

(d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Offerors are free to enter into separate non-disclosure agreements with the file support contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the files or otherwise encumber the Government.

L-209-H009 NOTIFICATION OF POTENTIAL ORGANIZATIONAL OR PERSONAL CONFLICT(S) OF INTEREST (NAVSEA) (APR 2022)

(a) Offerors are reminded that certain existing contractual arrangements may preclude, restrict or limit participation, in whole or in part, either as a subcontractor or as a prime contractor under this competitive procurement. Of primary concern are those contractual arrangements in which the Offeror provides support to **Portsmouth Naval Shipyard**, or related laboratories (if applicable), in support of operation of the office or any of its programs. General guidance may be found in FAR 9.505; however, this guidance is not all-inclusive. The Offeror's attention is directed to the "Organizational Conflict of Interest" (OCI) or similar requirement which may be contained in current or completed contract(s) which prohibits the prime or subcontractor from providing certain supplies or services to the Government as described above during the period of the current "support" contract(s) or for a period after completion of the "support" contract(s). Notwithstanding the existence or non-existence of an OCI or similar requirement in current or completed contract(s), the Offeror shall comply with FAR subpart 9.5 and identify whether an OCI exists and not rely solely on the presence of an OCI or similar requirement.

(b) Offerors also are reminded that certain potential conflicts of interest may arise where an Offeror has unequal access to nonpublic information about a competitor that may provide the Offeror with an unfair competitive advantage and preclude, restrict or limit participation, in whole or in part, either of the individual, subcontractor or prime contractor under this competitive procurement. For example, a potential conflict may arise if former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror may have gained access to nonpublic information about a competitor through participation in previous or ongoing performance or during the solicitation development/source selection process associated with this competitive procurement, and then participates in the formation of the Offeror's proposal. Other potential conflicts of interest may arise where either the former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror under this competitive procurement set the ground rules for competition; for example, by drafting specifications or assisting in the drafting of the statement of work. General guidance may be found in FAR 3.101 and 9.505; however, this guidance is not all-inclusive.

(c) If an Offeror identifies a potential conflict of interest that exists at any tier, that Offeror is requested to notify the Contracting Officer within 14 days of the date of this solicitation. The Offeror shall provide: (1) the contract or previous source selection's solicitation number and name and phone number of the Contracting Officer for the contract which gives rise to a potential conflict of interest; (2) a copy of the requirement; (3) the statement of work and technical instruction from the existing contract, as applicable; (4) a brief description of the type of work to be performed by each subcontractor under the competitive procurement; (5) a brief description of the individual's, subcontractor's, or teaming partner's unequal access to nonpublic information about a competitor, which may lead to a conflict of interest in the formation of the Offeror's proposal, or establishment of ground rules for this competitive procurement, as applicable; (6) an OCI mitigation plan, as applicable; and (7) any additional information the Contracting Officer should consider in making a determination of whether a conflict of interest exists. The Government may independently verify the information received from the Offeror. The requirement to identify potential conflicts of interest as outlined herein continues until contract award. Notwithstanding the above, the Government reserves the right to determine whether a conflict of interest exists based on any information received from any source.

(d) The Government will notify an Offeror of any conflict of interest within 14 days of receipt of all required information. Those Offerors deemed to have a conflict of interest may be ineligible for award. Failure to provide the information in a timely manner does not waive the Government's rights to make a conflict of interest determination. The Offeror is notified that if it expends time and money on proposal preparation, such expenditure is at its own risk regardless of whether the Government determines a personal or organizational conflict of interest does or does not exist.

(e) Any potential prime contractor which proposes an individual, subcontractor, or teaming partner later determined to have a conflict of interest and deemed ineligible to participate in the current competition, may not be granted the opportunity to revise its proposal to remove the ineligible individual, subcontractor or teaming partner. The Government reserves the right to determine which Offerors remain in the competitive range through the normal source selection process.

(f) If the Offeror determines that a potential organizational and/or personal conflict of interest does not exist at any tier, the Offeror shall include a statement to that effect in its response to this solicitation.

L-211-H001 UPDATES TO PERIOD OF PERFORMANCE AND DELIVERY DATES (NAVSEA) (JUN 2022)

For proposal purposes the estimated date of contract, task order, or delivery order award is **April 20, 2026**. The government reserves the right to award sooner or later if necessary. The delivery dates and/or period of performance start and end dates in Section F will be updated at award based upon actual contract, task order, or delivery order award date.

L-215-H004 INSTRUCTIONS FOR PRICING OF CONTRACT DATA REQUIREMENTS LIST (NAVSEA) (OCT 2018)

(a) The Offeror shall complete the "Price Group" (Block 17) and "Estimated Total Price" (Block 18) of each data item on the Contract Data Requirements List (CDRL) of this solicitation using the following instructions:

(1) Block 17. Use the specified price group defined below in developing estimated prices for each data item on the DD Form 1423:

(a) Group I. Definition - Data which is not otherwise essential to the Offeror's performance of the primary contracted effort (production, development, testing, and administration) but which is required by DD Form 1423.

(i) Estimated Price - Costs to be included under Group I are those applicable to preparing and assembling the data item in conformance with Government requirements, and the administration and other expenses related to reproducing and delivering such data items to the Government.

(b) Group II. Definition - Data which is essential to the performance of the primary contracted effort but the Offeror is required to perform additional work to conform to Government requirements with regard to depth of content, format, frequency of submittal, preparation, control, or quality of the data item.

(i) Estimated Price - Costs to be included under Group II are those incurred over and above the cost of the essential data item without conforming to Government requirements, and the administration and other expenses related to reproducing and delivering such data items to the Government.

(c) Group III. Definition - Data which the Offeror must develop for his internal use in performance of the primary contracted effort and does not require any substantial change to conform to Government requirements with regard to depth of content, format, frequency of submittal, preparation, control, or quality of the data item.

(i) Estimated Price - Costs to be included under Group III are the administrative and other expenses related to reproducing and delivering such data items to the Government.

(d) Group IV. Definition - Data which is developed by the contractor as part of his normal operating procedures and his effort in supplying these data to the Government is minimal.

(i) Estimated Price - Group IV items should normally be shown on the DD Form 1423 at no cost.

(2) Block 18. For each data item, enter an amount equal to that portion of the total price which is estimated to be attributable to the production or development for the Government of that item of data. The estimated data prices shall be developed only from those costs which will be incurred as a direct result of the requirement to supply the data, over and above those costs which would otherwise be incurred in performance of the contract if no data were required. The entry "N/C" for "no charge" will be acceptable. The estimated price shall not include any amount for rights in data. The Government's rights to use the data shall be governed by the pertinent provisions of the contract.

L-215-H006 SUBMISSION OF QUESTIONS BY OFFERORS--BASIC (NAVSEA) (APR 2022)

(a) Offerors may submit questions or request clarification of any aspect of this solicitation. It is the Offeror's responsibility to bring to the attention of the Contracting Officer at the earliest possible time, but prior to the closing date, any ambiguities, discrepancies, inconsistencies, or conflicts between the SOW or PWS (as applicable) and other solicitation documents attached hereto or incorporated by reference. Each question should identify solicitation number, document, page number, paragraph number or other identifier relating to the question. Questions without this information may not be answered. Acknowledgment of questions received will not be made.

(b) The deadline for receipt of questions is **10 days after issuance of solicitation**. Although every effort will be made, the Government makes no guarantee that questions received after the date above will be answered.

(c) All questions shall be submitted via email to the Primary and Secondary Solicitation Manager identified in the Solicitation Module within the Procurement Integrated Enterprise Environment (PIEE) (<https://piee.eb.mil>). The email should include the solicitation number in the subject line. Responses will be posted as an attachment to the Solicitation within the PIEE Solicitation Module.

L-216-H001 TASK ORDER GENERAL INFORMATION (NAVSEA) (JUL 2023)

- (a) This requirement is currently being satisfied by **No Current Incumbent** under Seaport Task Order **No Current Contract**.
- (b) Work performed under this task order will support the Receipt Inspection Services within the Quality Assurance (QA) Department.
- (c) The Government requirement is **67,975** total man hours (surge included) for this effort across **three (3)** years if all options are exercised.
- (d) This requirement is being solicited as ☐ unrestricted ☒ small business set-aside ☐ 8(a) set-aside. If unrestricted, there is a small business participation requirement of **100%** applicable to both large and small business entities proposing as prime subcontractors.
- (e) There ☐ will be ☒ will not be an industry day. If there will be an industry day, information will be provided elsewhere in this Section L.
- (f) Proposal in response to this solicitation shall be valid for **60** calendar days.
- (g) The applicable PSC is **H399**.
- (h) Many references and clauses within this solicitation refer to "contract" vice "order" or "task order". Offerors are advised that unless specifically referring to the basic IDIQ MAC, all references to "contract" refer to this Task Order.
- (i) Please consider the following suggestions for avoiding last-minute proposal submission problems:

Verify your account's ability to submit the necessary proposal information (either as a prime or subcontractor) well in advance of the closing time. This may be accomplished through the following steps:

1. Login to the PIEE system as the Proposal Manager and access the Solicitation Module.
2. To access the Solicitation Module, Offerors are required to register for a PIEE account. If an Offeror already has a PIEE account, the role of Proposal Manager can be added to the existing PIEE account. If an Offeror does not already have a PIEE account, the Offer can self-register for a PIEE user account and add the role of Proposal Manager.

3. Resources on how to navigate the PEE Solicitation Module are available at <https://dodprocurementtoolbox.com/site-pages/solicitation-module>.

4. For question related to the PEE Solicitation Module please contact disa.global.servicedesk.mbx.eb-ticket-requests@mail.mil. You can also reach PEE support by phone at 866-618-5988.

L-245-H001 AVAILABILITY OF GOVERNMENT PROPERTY (NAVSEA) (JUL 2024)

Government property is offered for use under this solicitation. The contractor is responsible for all costs related to making the property available for use, including (but not limited to) payment of all transportation, installation, and rehabilitation costs.

L-245-H002 INSTRUCTIONS REGARDING GOVERNMENT PROPERTY (NAVSEA) (JUL 2024)

All offerors shall submit the following information in their proposal:

(1) A list or description of all Government property that the offeror or its subcontractors propose to use on a rent-free basis. The list shall identify the accountable contract under which the property is held and the authorization for its use (from the contracting officer having cognizance of the property);

(2) The dates during which the property will be available for use (including the first, last, and all intervening months) and, for any property that will be used concurrently in performing two or more contracts, the amounts of the respective uses in sufficient detail to support prorating the rent;

(3) The amount of rent that would otherwise be charged in accordance with FAR 52.245-9, Use and Charges; and

(4) A description of the offeror's property management system, plan, and any customary commercial practices, voluntary consensus standards, or industry-leading practices and standards to be used by the offeror in managing Government property.

SEE SECTION L ATTACHMENT 7 TO FIND INSTRUCTION TO OFFERORS

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.233-2	Service of Protest.	Feb 2026		

Additional Regulation or Supplemental Clauses Incorporated by Full Text

L-209-H009 NOTIFICATION OF POTENTIAL ORGANIZATIONAL OR PERSONAL CONFLICT (S) OF INTEREST (NAVSEA) (APR 2022) (Apr 2022)

(a) Offerors are reminded that certain existing contractual arrangements may preclude, restrict or limit participation, in whole or in part, either as a subcontractor or as a prime contractor under this competitive procurement. Of primary concern are those contractual arrangements in which the Offeror provides support to **Portsmouth Naval Shipyard**, or related laboratories (if applicable), in support of operation of the office or any of its programs. General guidance may be found in FAR 9.505; however, this guidance is not all-inclusive. The Offeror's attention is directed to the "Organizational Conflict of Interest" (OCI) or similar requirement which may be contained in current or completed contract(s) which prohibits the prime or subcontractor from providing certain supplies or services to the Government as described above during the period of the current "support" contract(s) or for a period after completion of the "support" contract(s). Notwithstanding the existence or non-existence of an OCI or similar requirement in current or completed contract(s), the Offeror shall comply with FAR subpart 9.5 and identify whether an OCI exists and not rely solely on the presence of an OCI or similar requirement.

(b) Offerors also are reminded that certain potential conflicts of interest may arise where an Offeror has unequal access to nonpublic information about a competitor that may provide the Offeror with an unfair competitive advantage and preclude, restrict or limit participation, in whole or in part, either of the individual, subcontractor or prime contractor under this competitive procurement. For example, a potential conflict may arise if former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror may have gained access to nonpublic information about a competitor through participation in previous or ongoing performance or during the solicitation development/source selection process associated with this competitive procurement, and then participates in the formation of the Offeror's proposal. Other potential conflicts of interest may arise where either the former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror under this competitive procurement set the ground rules for competition; for example, by drafting specifications or assisting in the drafting of the statement of work. General guidance may be found in FAR 3.101 and 9.505; however, this guidance is not all-inclusive.

(c) If an Offeror identifies a potential conflict of interest that exists at any tier, that Offeror is requested to notify the Contracting Officer within 14 days of the date of this solicitation. The Offeror shall provide: (1) the contract or previous source selection's solicitation number and name and phone number of the Contracting Officer for the contract which gives rise to a potential conflict of interest; (2) a copy of the requirement; (3) the statement of work and technical instruction from the existing contract, as applicable; (4) a brief description of the type of work to be performed by each subcontractor under the competitive procurement; (5) a brief description of the individual's, subcontractor's, or teaming partner's unequal access to nonpublic information about a competitor, which may lead to a conflict of interest in the formation of the Offeror's proposal, or establishment of ground rules for this competitive procurement, as applicable; (6) an OCI mitigation plan, as applicable; and (7) any additional information the Contracting Officer should consider in making a determination of whether a conflict of interest exists. The Government may independently verify the information received from the Offeror. The requirement to identify potential conflicts of interest as outlined herein continues until contract award. Notwithstanding the above, the Government reserves the right to determine whether a conflict of interest exists based on any information received from any source.

(d) The Government will notify an Offeror of any conflict of interest within 14 days of receipt of all required information. Those Offerors deemed to have a conflict of interest may be ineligible for award. Failure to provide the information in a timely manner does not waive the Government's rights to make a conflict of interest determination. The Offeror is notified that if it expends time and money on proposal preparation, such expenditure is at its own risk regardless of whether the Government determines a personal or organizational conflict of interest does or does not exist.

(e) Any potential prime contractor which proposes an individual, subcontractor, or teaming partner later determined to have a conflict of interest and deemed ineligible to participate in the current competition, may not be granted the opportunity to revise its proposal to remove the ineligible individual, subcontractor or teaming partner. The Government reserves the right to determine which Offerors remain in the competitive range through the normal source selection process.

(f) If the Offeror determines that a potential organizational and/or personal conflict of interest does not exist at any tier, the Offeror shall include a statement to that effect in its response to this solicitation.

(End of Provision)

Section M - Evaluation Factors for Award

SECTION M - EVALUATION FACTORS FOR AWARD

CLAUSES INCORPORATED BY REFERENCE

52.217-5	Evaluation of Options	JUL 1990
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1.0 GENERAL

In accordance with the SeaPort-NxG basic IDIQ MAC Paragraph C.8.2. Competitive Ordering Process, a task order award will be made to the responsible Offeror whose proposal is the most advantageous to the Government under the selection criteria set forth in this solicitation. Notwithstanding any FAR Part 15 references contained herein, this procurement is being conducted under the "fair opportunity" requirements of FAR subpart 16.505.

The proposal must comply in all material respects with the requirements of the law, regulation, and all requirements set forth in this solicitation and in the SeaPort-NxG basic IDIQ MAC. A proposal that fails to meet any material requirement will render the proposal ineligible for award and it will be excluded from further consideration.

The Government intends to evaluate proposals and award based upon initial offers; therefore, Offeror's initial proposal should contain the best terms from a cost and technical standpoint. The Government reserves the right to award a task order without discussions with respective Offerors. The Government may conduct discussions if deemed in its best interest. The Government anticipates a single task order award resulting from this solicitation; however, the Government reserves the right to award more than one or no task order depending on the quality of the proposals received and the availability of funds.

The following terms and definitions will be used for proposal evaluations:

Deficiency is a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Risk, as it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an Offeror's proposed approach to achieving the technical factor or element may involve risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

Strength is an aspect of an Offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

Weakness means a flaw in the proposal that increases the risk of unsuccessful contract performance.

Significant Strength is an aspect of the Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

Significant Weakness in the proposal is a flaw that appreciably increases the risk of unsuccessful contract performance.

2.0 BASIS FOR AWARD

The award decision will be determined based on the Government's evaluation of each Offeror's proposal against the evaluation factors identified within this solicitation. Award will be made to the responsible Offeror whose proposal demonstrates the best value to the Government based on the evaluation factors. Best value means the expected outcome of an acquisition that, in the Government's estimation, provides the greatest overall benefit in response to the requirement. A tradeoff analysis may be used when it is in the best interest of the Government to consider award to other than the lowest total evaluated cost Offeror or other than the highest technically rated Offeror. The comparison will trade off differences in technical capability based on the non-cost factors and total evaluated cost. If one Offeror has both the better technical capability and the lower total evaluated cost, then that Offeror will be the better value. If one Offeror has the better technical capability and a higher total evaluated cost, the Government will decide whether the difference in technical capability is worth the difference in price. If it is determined that the difference in technical capability is worth the difference in price, then the more capable, higher-priced Offeror will be the better value. If not, then the less capable, lower-priced Offeror will be the better value. In order to be eligible for award, a proposal shall, at a minimum, meet the requirements of the Solicitation and demonstrate an adequate approach and understanding of the requirements. Accordingly, an offeror must receive an adjectival rating of "Acceptable" or higher under Factor 1 in order to be eligible for award.

3.0 RELATIVE IMPORTANCE OF EVALUATION FACTORS

The Government will evaluate each Offeror's proposal in accordance with the evaluation factors to determine the best value proposal. The evaluation factors represent key areas of importance to be considered in the source selection decision. The factors and associated elements have been chosen to support meaningful discrimination between competing proposals.

Factor	Elements
1. Technical	A. Technical Approach
	B. Management Approach
	C. Personnel Approach
2. Past Performance	None
3. Cost Proposal	None

The relative importance of the evaluation factors is as follows. Factor 1 is more important than Factor 2. Factors 1 and 2, when combined, are significantly more important than Factor 3.

The degree of importance of Factor 3 will increase with the degree of equality of the proposals in relation to the non-cost factors on which selection is to be based, or when the evaluated cost delta between Offerors is so significant as to diminish the value of the superiority of the non-cost factors.

4.0 DESCRIPTION OF EVALUATION FACTORS

Factor 1: Technical (Volume I)

Element A - Technical Approach. The Government will evaluate the extent to which the proposal demonstrates specific understanding, capability, and experience to successfully perform the requirements, and the soundness of the proposed technical approach.

Element B - Management Approach. The Government will evaluate the extent to which the proposal demonstrates an effective management organization with the capability, processes, and tools to successfully perform the requirements and ensure the highest quality deliverables, communication, cost management, risk management, and subcontractor management. The Government will evaluate the extent to which the proposal demonstrates a thorough and realistic approach for efficiently and effectively assuming responsibility over requirements while minimizing risk of performance disruption.

Element C - Personnel Approach. The Government will evaluate the extent to which the staffing plan addresses the labor hours identified in Section B and proposed personnel are able to perform all aspects of the SOW. The Government will evaluate the extent to which the proposal demonstrates a staffing plan and key personnel that are qualified, experienced, and suitable for performing the requirements.

Adjectival Rating Description. The Government will assign an adjectival rating for Factor 1 in accordance with the below adjectival rating table. Elements will not be separately rated.

Adjectival Rating	Description
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.

Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

Factor 2: Past Performance (Volume II)

The Government will evaluate the past performance references for recency, relevancy and quality of performance. Recent performance includes efforts performed within the past **three (3)** calendar years from solicitation release date. Relevant performance includes efforts that are of similar scope and complexity as identified in the SOW. Past performance references that reflect projects with a similar scope and complexity to efforts described in this solicitation will be considered to have greater importance in the evaluation of this factor. The Government will evaluate all past performance information collected and determine the quality of the Offeror's performance, general trends, and usefulness of the information and incorporate these into the assignment of a performance confidence assessment rating.

The Government reserves its right to collect and use information from sources other than those identified in the proposal to evaluate past performance. This may include, but not limited to, Federal, State, and local Government agencies, Contractor Performance Assessment Reporting System (CPARS), Better Business Bureaus, published media and electronic databases, and/or personal knowledge. The Government may contact past or current customers to collect additional information for use in evaluating past performance. The Government reserves the right to limit or expand the number of references it decides to contact and to contact other references than those provided in the proposal. The Government reserves the right to not perform a past performance evaluation on any Offeror that is assigned an "Unacceptable" or "Marginal" adjectival rating under Factor 1 - Technical.

Adjectival Rating Description. The Government will assign adjectival ratings for Factor 2 in accordance with the following information. For recency, each past performance reference will be assigned a rating of "Recent" or "Not Recent" as determined by whether the effort was performed within the past **three** calendar years from solicitation release date. For relevancy, each past performance reference will be assigned a rating in accordance with the below table.

Adjectival Ratings	Description
Very Relevant	Present/Past Performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires
Relevant	Present/Past Performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/Past Performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires
Not Relevant	Present/Past Performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires

The third aspect of the past performance evaluation is to establish the overall quality of the Offeror's past performance. The Government will review all past performance information collected and determine the quality of the Offeror's performance, general

trends, and usefulness of the information and incorporate these into a performance confidence assessment. A separate quality assessment rating will not be assigned; rather, an overall performance confidence assessment rating will be assigned based on the Offeror's overall record of recency, relevancy, and quality of performance. With respect to relevancy, more relevant past performance will typically be a stronger predictor of future success and have more influence on the past performance confidence assessment than past performance of lesser relevance. The Government will assign an overall performance confidence assessment ratings in accordance with the below table.

Adjectival Ratings	Description
Substantial Confidence	Based on the Offeror's recent/relevant performance record, the Government has a high expectation that the Offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the Offeror's recent/relevant performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the Offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The Offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the Offeror's recent/relevant performance record, the Government has a low expectation that the Offeror will successfully perform the required effort.
No Confidence	Based on the Offeror's recent/relevant performance record, the Government has no expectation that the Offeror will be able to successfully perform the required effort.

While "Neutral Confidence" ratings will not be evaluated favorably or unfavorably, the Government may determine that a "Substantial Confidence" or "Satisfactory Confidence" rating is worth more than a "Neutral Confidence" past performance rating in a best value tradeoff.

Factor 3: Cost Proposal (Volume III)

The Government will perform a cost realism analysis of the cost proposal. The Government will evaluate the proposed cost elements to determine whether they are realistic for the work to be performed; reflect a clear understanding of the requirements; and are consistent with the technical proposal (e.g. Volume 1 - Technical). The Government will determine the probable cost of performance by calculating the total evaluated cost for the entire cost proposal. The total evaluated cost is the sum of the realistic costs for all priced CLINs/SLINs inclusive of options and proposed fees. The total evaluated cost is determined by upwardly adjusting proposed costs to reflect more realistic levels based on the cost realism substantiating data, unless otherwise stated in Section L. The total evaluated cost may differ from the proposed cost and will reflect the Government's best estimate of the cost of actual performance in contract execution. The total evaluated cost will be used for purposes of evaluation to determine the best value.

The Government will evaluate whether the proposed costs are unrealistically low and the Government will make upward adjustments to those proposed costs that it determines in its judgement to be unrealistically low. The Government may also assign risk, weaknesses, and/or deficiencies to proposals that contain unrealistically low costs, unsupported costs, and/or costs inconsistent with the technical volume. The Government will not evaluate whether proposed cost elements are unrealistically high in a competitive environment since the fundamental purpose of a cost realism analysis is to guard the Government against any unrealistic claims of cost savings.

The Government reserves the right to limit cost realism analysis to only those Offerors that represent the most likely candidates for award and not make any cost realism adjustments to those Offeror's cost proposals that are high cost and have inferior adjectival ratings under Factor 1 - Technical. The Government reserves the right to not perform a cost realism analysis on any Offeror that is assigned an "Unacceptable" or "Marginal" adjectival rating under Factor 1 - Technical. The Government reserves the right to not

perform cost realism analysis on subcontractor proposals that reflect less than 5% of the total labor hours. The Government will not perform cost realism analysis on subcontractor proposals that are proposed on a Time-and-Materials or fixed priced basis (e.g. FFP, FFP LOE, etc.).

5.0 CONTRACT DOCUMENTATION (VOLUME IV)

The Government will evaluate the submitted contract documentation on a pass/fail basis to verify compliance with all requirements. If the Offeror has failed to meet any of the pass/fail requirements, the proposal is ineligible for award and will be eliminated from further consideration. The Government may waive minor oversights and irregularities in the submitted contract documentation provided that they are considered immaterial in its judgment. The Government reserves the right to not evaluate other proposal volumes I-III (Factors 1-3) if Offeror has failed to meet the requirements under Volume IV.